READ FIRST — HOW TO FILE YOUR RESPONSE

Kumar v. United States, No. 26-1250 (1st Cir.)

What this is. Your response to the Government's motion asking the First Circuit to end your appeal without full briefing. If the court grants that motion, your appeal is over. Your response asks the court to deny it. The court has not yet ruled on the motion.

Before you sign. Read the whole response. It makes these choices for you: (1) it focuses on the claim that your lawyer should have obtained proffer protection for the Massachusetts meetings; (2) it admits that no proffer letter would have protected the false statements in Count 3; (3) it keeps the pre-indictment delay claim short; (4) it does not ask the court to add the claims that were not certified (vindictive prosecution and sentencing). If you disagree with any of that, do not sign; tell the person who sent this to you.

What to sign and date (all on the same day you mail it).

1. The signature block at the end of the response (page 10) and the date.
2. The Certificate of Compliance (page 10) and the date.
3. The Certificate of Service and Declaration of Inmate Filing (page 11): write the date you put the package in the legal mail system, then sign. The date you write is the date your filing counts as made, so it must be true.

Copies. Make 4 complete sets for the court (the original plus 3 copies; each set is the response plus Exhibits A–D, all pages), 1 complete set for the Government, and 1 for yourself. Staple or clip each set securely. Only the original needs your wet-ink signatures; sign the copies too if you can.

Where to mail.

Court (4 sets): Clerk, United States Court of Appeals for the First Circuit, John Joseph Moakley United States Courthouse, 1 Courthouse Way, Suite 2500, Boston, MA 02210.

Government (1 set), same day, same way: Donald C. Lockhart and Kriss Basil,

Assistant U.S. Attorneys, U.S. Attorney's Office, 1 Courthouse Way, Suite 9200, Boston, MA 02210.

How to mail. Use the prison's legal mail system, with first-class postage prepaid. The court's rules count a prisoner's paper as filed on the day you deposit it in the prison legal mail system, if you include the signed declaration on page 11. Ask for a receipt or log entry and keep it. Mail it as soon as you have signed it; the response may already be considered late.

Optional declaration. There is an optional declaration form in this package about when you received court mail. Do not file it unless every statement on it is true and you can fill in the dates. If you file it, attach it behind the signature page. If you are not sure, do not file it. The response does not depend on it.

After you mail it. Keep your copy and your mailing receipt. If you move or your mailing address changes, write to the Clerk right away with the case number (26-1250) and your new address; court orders are sent only to the address on file. Watch for the court's order. The Government may file a short reply.